

		the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default” ’ [Citation.]” (Kramer v. Traditional Escrow, Inc. (2020) 56 Cal.App.5th 13, 28.) “Because the law favors disposing of cases on their merits, ‘any doubts in applying section 473 must be resolved in favor of the party seeking relief from default [citations]. Therefore, a trial court order denying relief is scrutinized more carefully than an order permitting trial on the merits.’ [Citations.]” (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 980.) “ ‘[W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court’ [Citations.]” (Id. at pp. 981-982.) “Moreover, it has been held that where the aggrieved party makes a strong showing of diligence in seeking relief after discovery of the facts, and the other party is unable to show prejudice from the delay, the original negligence in allowing the default to be taken will be excused on a weak showing.” (Aldrich v. San Fernando Valley Lumber Co. (1985) 170 Cal.App.3d 725, 740.) Here, Default Judgment was entered within 3 months of the Complaint being served on Defendant. Defendant filed this motion within 1 month of the default judgment having been entered. Plaintiff has been diligent in bringing the motion. Also, Defendant has established no prejudice. Therefore, the Motion is GRANTED. Defendant to separately file the Answer. Defendant to give notice
107	Nguyen vs. Yadidi 26-01545507	Motion for Change of Venue (Transfer) Defendants Kayvon Yadidi, D.O., Peter Murray, Phuong Goodwin, Agile Occupational Medicine, LLC,

		Adam Lerner, Angeles Equity Partners, LLC, Agile Management Aggregator, LLC and Agile Occupational Medicine, PC (“Defendants”) seek an order transferring venue of this action to Los Angeles County. “The court may, on timely motion, order transfer of an action “[w]hen the court designated in the complaint is not the proper court.” (Code Civ. Proc., §§ 397(a), 396b(a).) The moving party must overcome the presumption that the plaintiff has selected the proper venue. (Mitchell v. Superior Court (1986) 186 Cal.App.3d 1040, 1046.) Thus, “[i]t is the moving defendant’s burden to demonstrate that the plaintiff’s venue selection is not proper under any of the statutory grounds.” (Ibid.) Code of Civil Procedure section 395 states in pertinent part: “(a) Except as otherwise provided by law and subject to the power of the court to transfer actions or proceedings as provided in this title, the superior court in the county where the defendants or some of them reside at the commencement of the action is the proper court for the trial of the action.” It further states: “Subject to subdivision (b), if a defendant has contracted to perform an obligation in a particular county, the superior court in the county where the obligation is to be performed, where the contract in fact was entered into, or where the defendant or any defendant resides at the commencement of the action is a proper court for the trial of an action founded on that obligation, and the county where the obligation is incurred is the county where it is to be performed, unless there is a special contract in writing to the contrary.” (Code Civ. Proc., § 395(a).) Code of Civil Procedure section 395.5 provides: “A corporation or association may be sued in the county where the contract is made or is to be performed, or where the obligation or liability arises, or the breach occurs; or in the county where the principal place of business of such corporation is situated, subject to the
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	power of the court to change the place of trial as in other cases.” Here, the action was filed in Orange County, which is where several of the Defendants reside or have principal places of business. (See FAC ¶¶ 11, 14, 15, 18.) It is thus an appropriate venue for this action. Defendants contend that venue must be transferred to Los Angeles County because clauses in four of the agreements alleged in the First Amended Complaint (“FAC”) mandate Los Angeles County as the venue for this action. This argument is not well taken. First, the FAC alleges eighteen causes of action, only two of which sound in contract (the first and second causes of action for breach of contract and breach of implied covenant of good faith and faith dealing). These causes of action are only asserted against Agile Occupational Medicine, LLC and Agile Management Aggregator LLC. The causes of action against the remaining Defendants include claims of interference with prospective economic advantage, unfair competition, promissory estoppel, fraud, negligence, conversion, theft and related claims. Further, while Defendants have presented authority which indicates that a court may enforce a contractual venue clause—so long as the chosen venue is a permissible venue under the statutory scheme—that authority does not go so far as to require a court to enforce a venue selection clause where the selected venue is one of several permissible options. (See <i>Battaglia Enterprises, Inc. v. Superior Court</i> (2013) 215 Cal.App.4th 309, 317-318.) Accordingly, the motion is DENIED. The Court declines to rule on Defendants’ objections as immaterial to the disposition of this motion. The Court also declines to take judicial notice of the documents
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		requested by Plaintiffs, as immaterial to the disposition of this motion. Defendants to give notice.
108	Birchall vs. Orange County Sheriff Department 25-01505924	1. Motion for Judgment on the Pleadings Defendant COUNTY OF ORANGE, a public entity, erroneously sued and served herein as ORANGE COUNTY SHERIFF’S DEPARTMENT (the “County”), will and hereby does move the Court, pursuant to California Code of Civil Procedure Section 438 and this Court’s non statutory authority to hear motions for judgment on the pleadings, for an Order granting Defendant’s Motion for Judgment on the Pleadings without leave to amend and dismissing Plaintiff MARC BRUCE RONALD BIRCHALL’s Complaint. On 8/25/2025 Plaintiff initiated this lawsuit by filing a Complaint. On 4/30/2026 Defendant served Plaintiff via email with this Motion for Judgment on the Pleadings. Plaintiff is in pro per. Effective January 1, 2023, an unrepresented party may consent to receive electronic service. [CCP § 1010.6(c)(2); see CRC 2.251(c)(3)(B)—unrepresented parties must affirmatively consent to electronic service] Express consent to electronic service is accomplished either by (i) serving a notice on all other parties and filing it with the court, or (ii) by “[m]anifesting affirmative consent through electronic means with the court or the court's electronic filing service provider, and concurrently providing the party's electronic address with that consent for the purpose of receiving electronic service. The act of electronic filing shall not be construed as express consent.” [CCP § 1010.6(c)(3); see CRC 2.251(b)(1)]